THE STATE

And

KUDZAI MUTANGADURA

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 16 JULY 2026

Assessors: Mr Mbizo
Mrs Tshuma

Criminal trial

K Shava, for the state
N Sithole (Ms LV Nkomo), for the accused

NDUNA J: The accused faces one count of murder in contravention of *section 47(1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23]*. The accused denied the charge.

The facts are that the accused had left a truckload of tomatoes at a bus stop while he accompanied a friend to the friend's home, where they were dipping the friend's cattle. During that time, the deceased went to the truck, took some tomatoes, sold them, and kept the proceeds for his own use.

The accused later returned and discovered that the deceased had taken his tomatoes. Upon demanding payment, he was informed that the deceased had already converted the money to his own use. A confrontation ensued during which the accused assaulted the deceased. The accused eventually took the deceased to the police station, where he made a report. It appears that it was agreed at the police station that the deceased would repay the money for the tomatoes.

Thereafter, the deceased was found dead on a date that remains in dispute. His body was taken for a post-mortem examination, the results of which showed that he had

died as a result of the injuries he had sustained. The accused admits that he assaulted the deceased on the chest and took him to the police station. He, however, denies having inflicted the injuries that caused the deceased's death.

The State led evidence from two witnesses. Neither witness was able to state with certainty the date on which the accused confronted the deceased. Their evidence was shaky, and they only recalled having seen the two in conflict. It is not clear whether the accused assaulted the deceased with such severity as to cause the fatal injuries. Of concern is the evidence suggesting that the deceased was a person who drank alcohol excessively. He was staying alone at the home of one of the witnesses.

The most important question is: on what date did the accused assault the deceased? The accused maintains that he assaulted the deceased towards the end of September 2024. The deceased was found dead on 5 October 2024. The witnesses' testimony was vague. They were no longer certain of the date on which they saw the accused and the deceased in conflict.

Clearly, it is not safe to conclude that the accused inflicted the fatal injuries sustained by the deceased in the circumstances of this matter. There remains a real possibility that the deceased sustained the fatal assault elsewhere.

What we have is an admission of an assault by the accused. Section 274 of the Criminal Code provides as follows: -

> "274 Conviction for crime other than that charged
>
> Where a person is charged with a crime the essential elements of which include the essential elements of some other crime, he or she may be found guilty of such other crime, if such are the facts proved and if it is not proved that he or she committed the crime charged."

And section 275 provides as follows:-

> "275 Verdicts permissible on particular charges
> Without limiting section two hundred and seventy-three or two hundred and seventy-four, a person charged with–
>
> (a) a crime specified in the first column of the Fourth Schedule; or
> (b) threatening, incitement, conspiracy or attempting to commit such a crime; or
> I assisting a perpetrator of such a crime; may be found guilty of–

(i) a crime specified opposite thereto in the second column of the Fourth Schedule; or
(ii) threatening, incitement, conspiracy or attempting to commit such a crime; or
(iii) assisting a perpetrator of such a crime; if such are the facts proved."

And finally *section 276* provides as follows: -

"276 Sentence imposable where person found guilty on competent verdict
Where a person charged with a crime is found guilty of another crime in terms of this Chapter, the sentence imposed upon that person shall not exceed the maximum sentence applicable to the crime of which he or she is convicted."

The *Criminal Procedure & Evidence Act* (supra) provides for the returning of competent verdicts in the following fashion: -

"207 Conviction for part of crime charged

For the avoidance of doubt it is declared that where a court finds that part but not all of the facts of an offence charged have been proved, it shall nevertheless convict the accused of that offence if the facts that are proved dis-close all the essential elements of that offence"

It is clear, therefore, that a person appearing before a court may be convicted on a competent verdict where the evidence does not prove the offence charged but establishes a less serious offence in respect of which it is competent for the court to return a verdict of guilty.

In this case, the accused admits that he assaulted the deceased on a date that is not clear. That conduct nevertheless constitutes an assault. It was unlawful for the accused to assault the deceased. However, the evidence does not establish that the degree of force used in the assault caused the deceased's death. Indeed, the deceased was observed to be in a good state of health thereafter.

It is therefore appropriate to consider the applicability of a competent verdict in relation to the charge of murder. The accused admits assaulting the deceased but denies that the assault caused the deceased's death. On the evidence before the court, the State has failed to prove beyond a reasonable doubt that the accused caused the death of the deceased. However, the accused's own admissions, together with the evidence led, establish beyond reasonable doubt that he unlawfully assaulted the deceased.

Accordingly, the accused is found not guilty of murder but guilty of assault on the competent verdict.

National Prosecuting Authority, state's legal practitioners
Sithole Law Chambers, accused's legal practitioners